ORDINANCE NO. 596

AN ORDINANCE AMENDING THE ZONING DISTRICT MAP OF THE CITY OF RECTOR, ARKANSAS; REZONING CERTAIN PROPERTY FROM R-1 (MEDIUM DENSITY RESIDENTIAL) TO C-2 (GENERAL BUSINESS); AND FOR OTHER PURPOSES.

WHEREAS, Article 9-2 of the Rector Ordinance 359 provides procedures for amendments to zoning district classifications, including public notice, public hearing, Planning Commission review, and City Council action; and

WHEREAS, a petition was submitted by Andrew Giesbrecht requesting that certain property located in Block 2 of the French Addition, City of Rector, Clay County, Arkansas, be rezoned from R-1 (Medium Density Residential) to C-2 (General Business); and

WHEREAS, the petition included a legal description which described the subject property as provided by the Petitioner:

Lots 1, 2, 9, and 10, Block 2, French Addition, City of Rector, Clay County, Arkansas;

WHEREAS, notice of the public hearing on the proposed rezoning was duly published in a newspaper of general circulation in accordance with Article 9-2 (B) (1) of the Rector Ordinance 359; and

WHEREAS, the Rector Planning Commission conducted a public hearing, after notice in the local circulation, on December 11, 2025 at 5:07 PM, and after consideration of the request, surrounding land uses, and the adopted City of Rector Comprehensive Land Use Plan (2025–2030), voted to recommend approval of the rezoning; and

WHEREAS, no members of the public attended to express support or opposition to the rezone request; and

WHEREAS, the City Council finds that the requested rezoning is consistent with the City of Rector Comprehensive Land Use Plan (2025–2030), and that rezoning the subject property to C-2 (General Business) will promote orderly development, efficient land use, and the general welfare of the City.

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF RECTOR, ARKANSAS:

Section 1. Zoning Map Amended

The official Zoning District Map of the City of Rector, Arkansas, is hereby amended to rezone the following described property from R-1 (Medium Density Residential) to C-2 (General Business):

Lots 1, 2, 9, and 10, Block 2, French Addition, City of Rector, Clay County, Arkansas.

Section 2. Effect of Rezoning

The rezoning enacted by this ordinance authorizes only the change in zoning classification. All future development of the property shall comply with:

- Applicable provisions of Rector Ordinances relating to zoning,
- All building, fire, and safety codes, and
- Any required approvals, including variances granted by the Board of Zoning Adjustment, if applicable.

Nothing in this ordinance shall be construed as approval of any specific site plan, building design, or dimensional variance.

Section 3. Severability

That the provisions of this Ordinance are separable and if a section, phrase or provision shall be declared invalid, such declaration shall not affect the validity of the remainder of the Ordinance.

Section 4. Effective Date

This ordinance shall take effect upon its passage and publication as provided by law.

PASSED AND APPROVED this 8 **day of** JANUARY**, 2026.**

By: _____
Mayor Shawn Brandon

Attested:

_____
City Clerk